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SWNCC 181/3

21 September 1945

Pages 13 and 14

STATE-WAR-NAVY COORDINATING COMMITTEE

AUTHORITY OF THE SUPREME COMMANDER FOR THE ALLIED POWERS

References: a. SWNCC 181/2
b. Item 5, SWNCC 24th Meeting.

Note by the Secretaries

1. The enclosure, a memorandum for the President from the Acting Secretary of State, is circulated for the information of the Committee.

2. The Department of State has informed the Secretariat that the Governments of the U.S.S.R., the United Kingdom and China have been informed of the contents of the message (Appendix to SWNCC 181/2) and the Joint Chiefs of Staff have been requested to inform General MacArthur that there is no objection to the publication of the message.

CHARLES W. McCARTHY
ALVIN F. RICHARDSON
RAYMOND E. COX
Secretariat

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ENCLOSURE

DEPARTMENT OF STATE
WASHINGTON

September 13, 1945

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E.O. 11652, Sec. 3(E) and 5(D) or (E)
State Ltr 8-9-73
By [illegible] NARS, Date 9-26-74

MEMORANDUM FOR THE PRESIDENT

Subject: Authority of the Supreme Commander for the Allied Powers.

General MacArthur has sent the following message to the Joint Chiefs of Staff: "It would have a most beneficial and salutary effect if the instructions and powers of the Supreme Commander contained in your WX 60333 were published. Is there any objection?" A copy of the message in reference is attached hereto. The Joint Chiefs of Staff will transmit to General MacArthur a reply determined by the State-War-Navy Coordinating Committee.

The State-War-Navy Coordinating Committee on August 12 approved publication of the message in reference on the understanding (1) that Presidential approval of their decision be obtained by the Acting Secretary of State and (2) that the Governments of the U.S.S.R., the United Kingdom and China be informed of the contents of the message prior to its publication.

If you approve publication of the message, the Department of State will inform the respective Embassies and the Joint Chiefs of Staff will inform General MacArthur that there is no objection to publication.

(Signed) Dean Acheson

Acting Secretary

*Enclosure:
SWNCC 181/2
Appendix.

Approved
9/17/45
(Sgd) Harry S. Truman

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* See appendix hereto

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APPENDIX

Message Number 1

1. The authority of the Emperor and the Japanese Government to rule the State is subordinate to you as Supreme Commander for the Allied Powers. You will exercise your authority as you deem proper to carry out your mission. Our relations with Japan do not rest on a contractual basis, but on an unconditional surrender. Since your authority is supreme, you will not entertain any question on the part of the Japanese as to its scope.

2. Control of Japan shall be exercised through the Japanese Government to the extent that such an arrangement produces satisfactory results. This does not prejudice your right to act directly if required. You may enforce the orders issued by you by the employment of such measures as you deem necessary, including the use of force.

3. The statement of intentions contained in the Potsdam Declaration will be given full effect. It will not be given effect, however, because we consider ourselves bound in a contractual relationship with Japan as a result of that document. It will be respected and given effect because the Potsdam Declaration forms a part of our policy stated in good faith with relation to Japan and with relation to peace and security in the Far East.